

		material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]” (<i>LiMandri v. Judkins</i> (1997) 52 Cal.App.4th 326, 336.) The court in <i>Dhital v. Nissan North America</i> considered this principle in the context of consumers purchasing a manufacturer’s vehicle and held the plaintiff consumer need not allege a transaction with the manufacturer to allege a duty to disclose. Specifically, the <i>Dhital</i> court concluded allegations that the plaintiffs bought a vehicle from a Nissan dealership that was backed by an express warranty from Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers, was sufficient at the demurrer stage to support a duty to disclose. (<i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844, <i>petition for review granted</i> (2023) 523 P.3d 392 and dismissed and remanded, 559 P.3d 1083, 2024 WL5162583 (Dec. 18, 2024).)¹ Moreover, where a manufacturer partners with the seller by offering an express warranty as part of the sales package, that manufacturer steps into the role of a retailer. (<i>See e.g., Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337, 343 [manufacturer stepped into the role of the distributor and retail seller by issuing an express warranty in sale of used vehicle].) The Complaint here alleges sufficient facts from which the court may reasonably construe the warranty contract was executed as part of the sales package for the purchase of a new vehicle manufactured by Defendant TMS. (<i>See</i> Compl. ¶ 7, Ex. A.) The Complaint alleges facts supporting Defendant TMS’s exclusive knowledge of the alleged Battery Defect, including that Defendant TMS was aware that the vehicle was equipped with a defective battery and actively concealed these material defects from the public. (Compl. ¶¶ 63-72.) Defendant was in a superior position from various internal sources to know of the facts surrounding the material defects. (Compl. ¶ 69(b).) These allegations are sufficient to establish a duty to disclose.
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¹ Neither the order granting review nor dismissing the review affects the publication status of the *Dhital* opinion. (*See* Cal. Rules Ct., Rule 8.1115(e)(2) [providing that unless otherwise ordered by the Supreme Court, a published opinion by the appellate court on review by the Supreme Court remains citable and has binding or precedential effect, except to the extent it is inconsistent with the decision of the Supreme Court or disapproved by that court], Rule 8.528(b)(3) [providing a Cal. Supreme Court order “dismissing review does not affect the publication status of the Court of Appeal opinion unless the Supreme Court orders otherwise”].)